



CHAPTER liii.

An Act to provide for the transfer of the undertaking of the Chelmsford Gas Company to the mayor aldermen and burgesses of the borough of Chelmsford and to confer further powers on that Corporation with respect to the supply of gas and for other purposes.

A.D. 1915.

[15th July 1915.]

WHEREAS the borough of Chelmsford in the county of Essex (in this Act called "the borough") is a municipal borough under the management and local government of the mayor aldermen and burgesses of the borough (in this Act called "the Corporation"):

And whereas by the Chelmsford Gas Act 1914 (in this Act called "the Act of 1914") the Chelmsford Gas Company (in this Act called "the company") were incorporated and the undertaking of the Chelmsford Gas Light and Coke Company was vested in the company and the said Chelmsford Gas Light and Coke Company were from the passing of that Act dissolved:

4 & 5 Geo. 5.
c. lxxiv.

And whereas by the Act of 1914 the limits within which the company are authorised to supply gas are defined as being the borough and parish of Chelmsford and the parishes of Springfield Broomfield Great Baddow Great Waltham Little Waltham Great Leighs Little Leighs Fairsted Faulkbourne Terling Hatfield Peverel Boreham Little Baddow Danbury Woodham Ferrers Sandon East Hanningfield West Hanningfield Chignall Writtle Roxwell Widford and Margaretting all in the county of Essex:

And whereas provisions are contained in the Act of 1914 with respect to the purchase by the Corporation of the undertaking of the company and it was provided (among other things) that if the Corporation should introduce in the next session

A.D. 1915 — of Parliament a Bill for an Act to empower them to purchase the undertaking of the company and bonâ fide promote the same the company should not oppose such Bill except in so far as they might deem necessary in order to secure the insertion therein of provisions to protect their interests with respect to such purchase :

And whereas it is expedient that the undertaking of the company should be transferred to and vested in the Corporation in manner provided by this Act and that powers should be conferred on the Corporation as hereinafter provided :

And whereas it is expedient that the Corporation be authorised to borrow money for the purchase of such undertaking and for other the purposes of this Act :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

For the erection alteration and improvement of	£
gasworks - - - - -	36,000
For new gas mains and the extension of gas	
mains - - - - -	13,200
For new services meters stoves and fittings -	10,800

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the Chelmsford Corporation Gas Act 1915.

2. This Act is divided into Parts as follows:—

A.D. 1915.

Part I.—Preliminary.

Division of
Act into
Parts.

Part II.—Purchase of undertaking of the Company.

Part III.—Supply of gas.

Part IV.—Financial.

Part V.—Miscellaneous.

3. The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act (namely):—

Incorpora-
tion of Acts.

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845);

The Gasworks Clauses Act 1847 (except the provisions thereof with respect to the amount of profit to be received by the undertakers when the gasworks are carried on for their benefit and with respect to the yearly receipt and expenditure of the undertakers) Provided that section 13 thereof shall be read as if the words “or any premises” were inserted after the words “private building” and as if the words “Provided also that “every such contract entered into by the Corporation “shall be alike in terms and amount under like circumstances to all consumers” were added at the end of that section; and

The Gasworks Clauses Act 1871 (except sections 7 8 and 35 thereof).

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

Interpre-
tation.

“The Corporation” means the mayor aldermen and burgesses of the borough of Chelmsford;

“The borough” means the borough of Chelmsford;

“The council” means the council of the borough;

“The company” means the Chelmsford Gas Company;

“The Act of 1914” means the Chelmsford Gas Act 1914;

A.D. 1915.

- “The undertaking of the company” includes all the works engines mains pipes and machinery lands and buildings plant fixed and movable and all other the real and personal property assets and effects of whatever nature and all the rights powers and privileges vested in or belonging to or had or enjoyed by the company at the date of transfer of the undertaking of the company to the Corporation except the books and papers relating exclusively to the stockholders and constitution of the company;
- “The date of transfer” means the date agreed or fixed in accordance with the provisions of subsection (5) of the section of this Act of which the marginal note is “Transfer of undertaking of company to Corporation” for the transfer of the undertaking of the company to the Corporation under the provisions of this Act;
- “The date of consent” means one month after the consent of the Treasury has been obtained to the borrowing by the Corporation of the money required for paying the purchase money to the company or the necessity for such consent ceases whichever is the earlier;
- “The gas undertaking” means the gas undertaking of the Corporation under this Act;
- “The town clerk” means the town clerk of the borough and includes any person duly authorised to discharge temporarily the duties of that office;
- “The borough fund” “the borough rate” “the district fund” and “the general district rate” mean respectively the borough fund the borough rate the district fund and the general district rate of the borough;
- “Daily penalty” means a penalty for each day on which any offence is continued by a person after conviction;
- “Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or

securities transferable by delivery or any securities of the Corporation ; A.D. 1915.

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed ;

“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation.

PART II.

PURCHASE OF UNDERTAKING OF THE COMPANY.

5.—(1) Within six months after the passing of this Act the Corporation shall give to the company notice in writing of their intention to purchase the undertaking of the company and thereupon the company shall sell and transfer and the Corporation shall purchase and acquire the undertaking of the company subject to all their then existing debts obligations and liabilities other than mortgage or debenture debts for such price or consideration being a sum in gross and on and subject to such terms and conditions as may be agreed upon between the company and the Corporation or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression “the promoters of the undertaking” shall mean the Corporation and the expression “lands” shall mean the undertaking of the company and for the purposes of such arbitration the sale and purchase shall be deemed to be a sale and purchase by compulsion and not by agreement.

Transfer of undertaking of company to Corporation.¹

A.D. 1915.
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(2) In addition to the amount to be paid by the Corporation to the company under the foregoing provisions of this section the Corporation shall pay to the company the costs charges and expenses of the company of and incidental to (a) the obtaining of the Act of 1914 and (b) the watching or procuring of any amendment of the Bill for this Act (the before-mentioned costs charges and expenses to be taxed as between solicitor and client) and the sum of two hundred pounds in respect of the transfer of the undertaking of the company and the winding up of the company.

(3) The company shall be entitled to retain or shall be paid by the Corporation in addition to the price or consideration for the sale and transfer of the undertaking of the company such a sum as shall be necessary to enable the company to pay dividends at the authorised rates from the date of the last payment of such dividends to the date of transfer.

(4) The Corporation shall also pay compensation to the directors of the company and to any officers and servants (except weekly servants of less than ten years' service) in the regular employment of the company who shall not be retained by the Corporation in the same or similar office or employment and at the salary and on the terms and conditions in at and on which they respectively were employed by the Chelmsford Gas Light and Coke Company on the first day of March one thousand nine hundred and fourteen in respect of any loss of office or diminution of salary or income by reason of the transfer of the undertaking of the company to the Corporation the amount of such compensation in default of agreement to be determined by arbitration as aforesaid and the engineer and manager and secretary and any officer or servant who has been in the employment of the company for ten years or upwards shall not lose his right to compensation as aforesaid by reason of his refusal to accept employment under the Corporation nor shall any such refusal be taken into account as a ground for reducing the amount of compensation to be paid.

(5) The Corporation shall pay the purchase money to the company on such day as may be agreed between the company and the Corporation or failing agreement at the expiration of three months from the determination by agreement in writing or by the award of the arbitrator or umpire of the amount of the purchase money and upon such date the undertaking of the company shall by virtue of this Act become and shall

thenceforth be transferred to and vested in and belong to and be exerciseable by the Corporation and such transfer and vesting are in this Act referred to as "the transfer" Provided that if the Corporation shall not pay the said purchase money on the date so agreed or fixed as aforesaid they shall pay to the company (in addition to the sum to which the company shall be entitled under subsection (3) of this section) interest on the purchase money at the rate of five pounds per centum per annum from the date so agreed or fixed until payment or until the date of consent whichever is the earlier and such sum as may be or may have been agreed between the Corporation and the company for any expenses incurred by the company between the date of transfer and the receipt of the purchase money.

(6) If the Treasury in pursuance of the section of this Act of which the marginal note is "Corporation not to borrow during continuance of war" refuse their consent to the borrowing by the Corporation of the money required for paying the purchase money the company shall not be entitled to require the Corporation to pay the purchase money until one month after such consent is given or the necessity for such consent ceases whichever is the earlier Provided that if the Corporation shall not pay the purchase money on the date of consent they shall pay to the company interest on the purchase money at the rate of ten pounds per centum per annum from the date of consent until payment.

(7) The production of a King's Printer's copy of this Act duly stamped together with a receipt for the purchase money purporting to be signed by three directors of the company or by the cashier of the Bank of England shall (unless it be proved that the purchase money has not been paid) be conclusive evidence in all courts and proceedings of the sale to and purchase by the Corporation of the undertaking of the company.

6. The receipt in writing of three directors of the company for money paid to the company by the Corporation shall effectually discharge the Corporation from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss mis-application or non-application thereof Provided that if from any cause the Corporation are unable to obtain such receipt they may pay

Receipt for
purchase
money.

[Ch. liii.] *Chelmsford Corporation Gas Act, 1915.* [5 & 6 GEO. 5.]

A.D. 1915. the money into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the Corporation by the cashier of the said bank for the money which shall have the same effect as the receipt of three directors of the company.

Pending
actions.

7. If at the date of transfer any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing by or against or in favour of the company in respect of the undertaking of the company the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the transfer or of anything in this Act but the same may be continued prosecuted and enforced by or against or in favour of the Corporation as and when it might have been continued prosecuted and enforced by or against or in favour of the company if this Act had not been passed but not further or otherwise.

Contracts of
Company to
be binding on
Corporation.

8. Subject to the provisions of this Act all purchases sales agreements contracts conveyances deeds and other instruments affecting the undertaking of the company and in force at the date of transfer shall after the transfer be as binding and of as full force and effect against or in favour of the Corporation and may be enforced as fully and effectually as if instead of the company the Corporation had been a party thereto.

Winding up
of company.

9.—(1) From and after the transfer the company shall subsist only for the purpose of receiving and recovering the sums and distributing the interest payable to the company as provided by this Act and after the receipt of the purchase money of paying their mortgage and debenture debts and distributing the net moneys of the company in accordance with the provisions of this Act and for winding up the affairs of the company and carrying into effect the purposes of this Act so far as they relate to the company and the directors of the company who are in office at the date of transfer and the survivors or survivor of them shall continue in office without re-election and they or a majority of them shall have full power and authority to take all necessary proceedings for carrying into effect the several purposes of this section.

If the number of directors of the company be reduced by death resignation or otherwise below three before the completion of such winding up the continuing directors or director shall

from time to time choose a stockholder or stockholders of the company to fill the vacancy or vacancies so caused. A.D. 1915.

(2) Forthwith after the receipt of the purchase money the directors of the company shall proceed to wind up the affairs of the company and after paying the mortgage and debenture debts of the company and the expenses and liabilities incurred in and about the winding up of the company and such bonus (if any) as the company may determine to grant to any of the directors officers or servants of the company shall pay and distribute their net moneys rateably to and among the several persons who at the transfer were the registered holders of stock in the capital of the company or their respective executors administrators and assigns according to the holding of each such stockholder and for the purpose of such distribution the several persons whose names shall appear in the books of the company at the date of the receipt of the purchase money to be the proprietors of stock therein shall unless the contrary be proved to the satisfaction of the directors be considered to be stockholders of the company and the receipt in writing of such persons or of their executors or administrators or of the committee or guardian of the estate of any such person who shall be an idiot lunatic or minor shall be an effectual discharge to the company and the directors thereof for the money therein expressed to be received and shall exonerate them from any obligation affecting the stock or interest in respect of which the money is paid.

(3) Where the directors of the company are for six months after the receipt of the purchase money unable after diligent inquiry to ascertain the person to whom any money ought to be paid or who can give an effectual receipt for the same they may pay the same into the High Court or if not exceeding five hundred pounds into the county court of Essex holden at Chelmsford under any Act for the time being in force for the relief of trustees and every such payment shall effectually discharge the company and the directors thereof from all further liability with respect to the money so paid in.

(4) After the transfer and until the company shall be finally wound up and dissolved the company shall be entitled to retain the directors' minute books the register of stockholders and other books relating solely to the holders of stock in and to the constitution of the company and shall have access at all reasonable times to the other books documents and accounts

[Ch. liii.] *Chelmsford Corporation Gas Act, 1915.* [5 & 6 GEO. 5.]

A.D. 1915. relating to the transferred undertaking for the purpose of making up the accounts of the company to the date of transfer and for all other reasonable purposes in relation to the winding up of the company and upon the winding up of the company any books retained by them (other than such of the books of the company as relate exclusively to the stockholders in and the members and constitution of the company) shall be handed over to the Corporation.

(5) Upon the purposes specified in this section being fulfilled the company shall ipso facto be dissolved.

Liabilities to be defrayed by Corporation.

10. All obligations and liabilities of the company (other than mortgage or debenture debts and the interest thereon which shall be paid by the company) which exist at the date of transfer and then remain undischarged unpaid or unsatisfied shall be discharged paid or satisfied by the Corporation.

Books &c. to remain evidence.

11. All books and documents in the possession of the company which if the transfer had not been made would have been evidence in respect of any matter for or against the company shall after the transfer be admitted in evidence in respect of the same or the like matter for or against the Corporation.

Maintenance of undertaking by company till transfer.

12. Until the date of transfer the undertaking of the company shall be maintained and carried on by the company as heretofore but the company shall not without the previous consent of the Corporation under the hand of the town clerk make or enter into any new contract agreement or obligation except such as shall be in the ordinary course of business or save as hereinafter provided raise any capital in pursuance of the Act of 1914 Provided that the company shall be entitled until the date of transfer to raise by borrowing such sum or sums as may be necessary for carrying on the undertaking of the company in the ordinary course of business.

Repeal of Act of 1914 with exception of certain provisions.

13. Subject to the provisions of this Act as from the date of transfer the Act of 1914 with the exception of the sections of that Act and the schedule thereto which are referred to in the First Schedule to this Act shall be and the same is hereby repealed and the said sections of the Act of 1914 referred to in the First Schedule to this Act shall apply to the gas undertaking and to the Corporation in respect thereof as if the same were re-enacted in this Act and shall have effect as if the expression "the Corporation" were substituted for the expression

“the company” wherever the last-mentioned expression occurs in those sections and as if the expression “may manufacture store and supply” were substituted for the expression “shall be established for the purpose of manufacturing storing and supplying” in section 5 of the Act of 1914 and as if the expression “gas authority” were substituted for the expression “gas company” in the said section 5. A.D. 1915.

PART III.

SUPPLY OF GAS.

14. The limits within which the Corporation may supply gas shall be and include the borough and parish of Chelmsford and the parishes of Springfield Broomfield Great Baddow Great Waltham Little Waltham Great Leighs Little Leighs Fairsted Faulkbourne Terling Hatfield Peverel Boreham Little Baddow Danbury Woodham Ferrers Sandon East Hanningfield West Hanningfield Chignall Writtle Roxwell Widford and Margaretting all in the county of Essex. Gas limits.

15. If after the expiration of nine years from the passing of this Act the Corporation have not laid down mains for the supply of gas within any parish in the limits of supply this Act shall not be deemed to prevent any company person or local authority having statutory power so to do from supplying gas in such parish and the Corporation shall not oppose otherwise than upon details any application by the council of any district in which any such parish or any part thereof may be comprised for an Act of Parliament or Provisional Order for the purpose of providing such a supply and for the repeal of the powers of the Corporation in that behalf. Provision in case of mains not being laid down within limited period.

16. If at any time after the passing of this Act any local authority whose district is beyond the borough but as to the whole or any part thereof within the limits within which the Corporation are by this Act authorised to supply gas shall give not less than six months' notice in writing to the Corporation of their desire to purchase such portion of the gas undertaking as is contained within the district of any such local authority and shall obtain the consent of the Local Government Board to such purchase and shall apply to Parliament or the Local Government Board for power to purchase such portion of the gas undertaking (except the mains and pipes or other apparatus which shall be necessary for supplying with gas Provision for sale of plant outside borough.

[Ch. liii.] *Chelmsford Corporation Gas Act, 1915.* [5 & 6 GEO. 5.]

A.D. 1915. — any other part of the limits within which the Corporation are authorised to supply gas) and to supply gas within such district then it shall not be lawful for the Corporation to oppose such application (except as to the details thereof) and if such powers of purchase and supply be granted the Corporation shall sell and such local authority shall purchase the portion of the gas undertaking (except as aforesaid) within the district of such local authority at such price being a sum in gross and upon such terms and conditions as shall be fixed in default of agreement by arbitration under the provisions of the Lands Clauses Acts Any such purchase shall be deemed to be a purpose of the Public Health Act 1875 except so far as may be otherwise provided for by Parliament The Corporation shall apply the proceeds of any sale under this section in the same manner as they are required to apply money received from sales of land under this Act After the completion of such purchase all obligations on the part of the Corporation to supply gas within the district of the purchasing authority shall cease and determine.

Power to
purchase
lands by
agreement.

17. The Corporation may for the purposes of the gas undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands described in the schedule to the Act of 1914 any lands and hereditaments not exceeding in the whole five acres which the Corporation may require for the purposes of the gas undertaking but the Corporation shall not create or permit a nuisance on any such lands and no lands shall be used by the Corporation for the purpose of manufacturing gas or residual products except the lands described in the said schedule.

Power to
retain sell
&c. lands.

18. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Corporation may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale

lease exchange or other disposition and on any exchange may give or take any money for equality of exchange. A.D. 1915.

19. The proceeds of the sale of any lands or other property of the Corporation under the powers of this Act and the fines and premiums on any leases granted by the Corporation under this Act shall be distinguished as capital in the accounts of the Corporation and shall be applied in discharge of any moneys borrowed by the Corporation under this Act to which such capital moneys would be properly applicable or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Corporation but shall not be applied to the payments of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board and borrowed money discharged by the application of such sums shall not be re-borrowed. Proceeds of
sale of sur-
plus lands.

20. The price to be charged by the Corporation for gas supplied by them to persons who shall burn the same by ordinary meter shall not at any time— Limiting
price of gas.

(a) Within the borough and parish of Chelmsford and the parishes of Springfield Broomfield Great Baddow and Widford exceed three shillings and ninepence; and

(b) Beyond the borough and parish of Chelmsford and the parishes of Springfield Broomfield Great Baddow and Widford exceed by more than ninepence the price for the time being charged by the Corporation in the borough and parish of Chelmsford and the parishes of Springfield Broomfield Great Baddow and Widford

for every thousand cubic feet and so in proportion for every smaller quantity Provided that the price to be charged by the Corporation for gas supplied by them to persons who shall burn the same by ordinary meter in the parishes of Springfield Broomfield Great Baddow and Widford shall not at any time exceed the price then being charged by them to persons who shall burn the same by ordinary meter in the borough and parish of Chelmsford.

21. For the protection of the rural district council of Chelmsford (in this section referred to as "the rural council") the following provisions shall unless otherwise agreed in writing For protec-
tion of rural
district
council of
Chelmsford.

A.D. 1915. — between the Corporation and the rural council have effect within the district of the rural council (that is to say):—

- (1) The notice required by section 8 of the Gasworks Clauses Act 1847 with respect to the breaking up of any street bridge sewer drain or tunnel shall be not less than seven clear days instead of not less than three clear days:
- (2) Nothing in this Act shall authorise the Corporation to interfere with the structural part of any bridge vested in or under the jurisdiction of the rural council without the consent in writing of the surveyor to the rural council which shall not be unreasonably withheld:
- (3) All works shall be executed by the Corporation so as not (so far as is reasonably practicable) to stop impede or interfere with the traffic on any road street or bridge vested in or under the jurisdiction of the rural council or on the approaches to any such bridge and the Corporation shall not break up at any one time a greater length than three hundred yards of any road or street under the jurisdiction of the rural council:
- (4) Where any mains or pipes of the Corporation (other than service pipes) are to be laid or relaid beneath the surface of the roadway of any road street or bridge vested in or under the jurisdiction of the rural council the same shall be laid or relaid wherever practicable at such a depth that not less than two feet shall intervene between the surface of such roadway and the upper surface of such mains or pipes Provided that this subsection shall not apply to the laying down of any mains or pipes beneath the surface of the footpath or greensward by the side of any road or street:
- (5) If any difference shall arise between the rural council and the Corporation touching the provisions of this section such difference shall be settled by an arbitrator to be agreed upon between the rural council and the Corporation or failing agreement to be appointed on the application of either party after notice to the other by the President of the Institution of Civil

Engineers and subject as aforesaid the Arbitration A.D. 1915.
Act 1889 or any statutory modification thereof shall
apply to the arbitration.

22.—(1) The quality of the gas supplied by the Corporation shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871. Testing
quality.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer or the table photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Corporation or any five consumers approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Corporation shall at all times keep in proper order and repair the apparatus required for the testing of gas in accordance with the provisions of this Act.

23.—(1) The Corporation may purchase sell let for hire fix repair and remove but shall not manufacture engines motors stoves ranges pipes and other gas fittings for lighting motive heating ventilating cooking or any other purposes and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon. Power to
supply gas
fittings &c.

(2) The Corporation may enter into contracts for the execution of any of the powers of this section and shall not themselves lay any pipes on the consumers' premises except between the main of the Corporation and the consumers' meter nor shall they sell any such gas fittings as aforesaid except through a contractor.

(3) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under

A.D. 1915. — process of any court or proceedings in bankruptcy against the person in whose possession the same may be Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Corporation as the actual owners thereof.

(4) Provided as follows—

(a) The Corporation shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under the powers of this section in connection therewith (including interest upon moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed):

(b) Every sum charged by the Corporation in respect of the provision of such fittings or the fixing repairing or removal thereof shall be separately stated on every demand note delivered by the Corporation to the consumer:

(c) The total sums expended and received by the Corporation in connection with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the gas undertaking for that year.

Gas engines &c. let on hire though fixed to premises to remain property of Corporation.

24. All engines motors stoves ranges pipes and other gas fittings let by the Corporation for hire under this Act shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Corporation Provided that nothing in this section shall affect the amount of assessment for rating of any premises upon which any such fittings are or shall be fixed Provided also that the Corporation shall only be entitled to the privileges and exemptions conferred by this section in respect of such fittings as shall be marked or impressed with a sufficient mark or brand indicating the Corporation as the actual owners thereof.

Dwelling-houses for Corporation employees.

25. The Corporation may erect fit up maintain and let upon the lands for the time being belonging to or leased by them for the purpose of the gas undertaking dwelling-houses for persons employed by them for the purpose of that undertaking.

PART IV.

A.D. 1915.

FINANCIAL.

26.—(1) The Corporation may independently of any other borrowing power borrow at interest money for the following purposes (that is to say):— Power to borrow.

- (a) For the purchase of the undertaking of the company and for paying any sums payable by the Corporation to the company or to any of their directors officers and servants by way of compensation under this Act and defraying the costs charges and expenses incident to such purchase and to the winding up of the company as provided by this Act (other than the costs of this Act) the sums requisite for those purposes:
- (b) For the erection alteration and improvement of gasworks any sum or sums not exceeding in the whole thirty-six thousand pounds:
- (c) For new gas mains and the extension and improvement of gas mains any sum or sums not exceeding in the whole thirteen thousand two hundred pounds:
- (d) For new services meters stoves and fittings any sum or sums not exceeding in the whole ten thousand eight hundred pounds:
- (e) For paying the costs charges and expenses of this Act and of opposing the Bill for the Act of 1914 as hereinafter provided the sum requisite for that purpose.

(2) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Corporation may mortgage or charge—

As regards moneys borrowed for the purposes (a) (b) (c) and (d) hereinbefore mentioned the revenue of the gas undertaking and if they think fit as a collateral security the district fund and the general district rate:

As regards moneys borrowed for the purpose (e) hereinbefore mentioned the borough fund and borough rate and the district fund and general district rate.

The provisions of this section shall not limit the powers conferred on the Corporation by the section of this Act whereof the marginal note is “Power to use one form of mortgage for all purposes.”

A.D. 1915.

Corporation
not to borrow
during con-
tinuance of
war.

27. Notwithstanding anything in this Act the Corporation shall not under the powers of this Act borrow any money other than money required for paying the costs charges and expenses of this Act and of opposing the Bill for the Act of 1914 as hereinafter defined during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Period for
payment off
of money
borrowed.

28. The Corporation shall pay off all moneys borrowed by them under this Act within the respective periods following (hereinafter referred to as "the prescribed periods") (that is to say) :—

As to money borrowed for the purposes (a) mentioned in the section of this Act the marginal note of which is "Power to borrow" thirty-five years from the date or dates of the borrowing of the same :

As to money borrowed for the purposes (b) mentioned in the said section forty years from the date or dates of the borrowing of the same :

As to money borrowed for the purposes (c) mentioned in the said section thirty years from the date or dates of the borrowing of the same :

As to money borrowed for the purposes (d) mentioned in the said section fifteen years from the date or dates of the borrowing of the same :

As to money borrowed for the purpose (e) mentioned in the said section five years from the date of the passing of this Act.

Section 234
of Public
Health Act
1875 not to
apply.

29. The powers of borrowing money given by this Act shall not be restricted by any of the regulations contained in section 234 (Regulations as to exercise of borrowing powers) of the Public Health Act 1875 and in calculating the amount which the Corporation may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Mode of
raising
money.

30. The Corporation may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others Provided that the provisions contained in the section of this Act the marginal

note of which is "Sinking fund" shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of sections 15 and 16 of that Act. A.D. 1915.

31. The following sections of the Public Health Act 1875 (that is to say):—

Section 236 (Form of mortgage);	Provisions of Public Health Act as to mortgages to apply.
Section 237 (Register of mortgages);	
Section 238 (Transfer of mortgages);	

shall (subject to the provisions of the section of this Act the marginal note of which is "Power to use one form of mortgage for all purposes") apply to and in relation to all mortgages granted under the powers of this Act as if they were with the necessary modifications re-enacted in this Act.

32.—(1) Any mortgagee of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than one thousand pounds in the whole. Appointment of receiver.

(2) The application for the appointment of a receiver shall be made to the High Court.

33. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months if by yearly instalments or within six months if by half-yearly instalments from the time of borrowing the sum in respect of which the payment is made. Mode of payment off of money borrowed.

34.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such fund shall be formed and maintained either— Sinking fund.

(a) By payment to the fund throughout the prescribed period of such equal yearly or half-yearly sums as

A.D. 1915.
—

will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(b) By payment to the fund throughout the prescribed period of such equal yearly or half-yearly sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed or in accordance with the provisions of the section of this Act of which the marginal note is “Power to use sinking fund instead of borrowing” be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal yearly or half-yearly payments to the fund.

(4) The Corporation may at any time apply the whole or any part of the sinking fund in or towards the discharge of the money for the repayment of which the fund is formed Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year or half-year (as the case may be) and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the yearly or half-yearly payments to the sinking fund are based.

(5)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the yearly or half-yearly payments to the fund are based any deficiency shall be made good by the Corporation:

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the yearly or half-yearly payments to the fund are based any such excess may be applied towards such payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appear to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose Provided that if it appear to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the

A.D. 1915. sinking fund is formed the Corporation may with the consent of that Board discontinue the payments to such sinking fund until the Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine.

Protection of lender from necessity of inquiry.

35. A person lending money to the Corporation under this Act shall not be bound to inquire as to the observance by the Corporation of any of the provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or any part thereof.

As to temporary borrowing.

36.—(1) For the purpose of providing temporarily during any financial year for their current expenses as a municipal education or sanitary authority (whether under the provisions of public general or local Acts) or for the current expenses of their gas undertaking and after the commencement of such year it shall be lawful for the Corporation to borrow by way of temporary loan or overdraft from any bank or on temporary loan on deposit receipt from any person such sums as they may from time to time resolve not exceeding in each case an amount equal to one third of the amount of the before-mentioned expenses for the immediately preceding financial year for any such purpose as aforesaid and any amount so borrowed shall form a charge upon the rates or revenue of the undertaking in respect of which it is borrowed as the same may be specified in the resolution of the Corporation authorising such borrowing *pari passu* with any corporation stock bond or mortgage affecting the same and it shall further be lawful for the Corporation to utilise for providing temporarily for any such expenses any sinking funds which they may have in hand crediting the said sinking funds with such fair rate of interest not being less than three pounds per centum per annum as they may resolve Provided that—

(a) Any sum so borrowed together with the interest thereon shall in the case of any sum borrowed on the credit of a rate be repaid out of such rate within the financial year during which the same was borrowed and in any other case the same shall be repaid out of the income

on the credit of which the sum was borrowed within three months after the expiration of such financial year : A.D. 1915.

(b) The town clerk shall within forty-two days after the end of each financial year furnish to the Local Government Board a special report showing precisely the operation of the powers of this section during such year and such report shall be in such form and shall contain such information as that Board shall approve or require :

(c) The Local Government Board may make such investigation as may be necessary to satisfy themselves that the requirements of this section as to repayment have been complied with and if it appear to the Local Government Board by the said report or by such investigation the Corporation have failed to comply with the requirements of this section as to repayment that Board may by order suspend the operation of the powers of this section for such period as they may think fit.

(2) The provisions of this section shall cease to be in force at the expiration of five years from the thirty-first day of March one thousand nine hundred and sixteen unless they shall have been continued by Act of Parliament or Provisional Order made by the Local Government Board and confirmed by Parliament which Order the Local Government Board are hereby empowered to make in accordance with the provisions of the Public Health Act 1875 and in the event of that Board making any such Order they are hereby empowered to make such modifications or amendments in the provisions of this section as may appear to them to be necessary.

37. The Corporation shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or encumbrance upon or transfer of such loan or Corporation not to regard trusts.

A.D. 1915. — security or any part thereof or interest thereon not entered in their register.

Power to use
one form of
mortgage for
all purposes.

38.—(1) Where the Corporation have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the common seal of the Corporation and may be made in the form contained in the Second Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with all other securities granted by the Corporation at any time after the date of a first grant of a mortgage under this section.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation.

(5) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the payment of interest upon the sums secured by mortgages granted under this section and the interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this section had not been enacted.

(7) There shall be kept at the office of the Corporation a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry

shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the town clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds. A.D. 1915.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Second Schedule to this Act or to the like effect.

(9) There shall be kept at the office of the Corporation a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival within the United Kingdom if executed elsewhere the same shall be produced to the town clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

(11) If the town clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

39.—(1) Where the Corporation are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose so much of any money for the time being

Power to use
sinking fund
instead of
borrowing.

A.D. 1915. forming part of a sinking fund as shall be available for the repayment of—

- (a) A loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein; or
 - (b) Moneys borrowed and charged upon all the revenues of the Corporation in manner provided by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" and not shown by the deed to be raised in exercise of a particular borrowing power specified therein.
- (2) The Corporation when exercising the powers conferred on them by this section shall—

- (a) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of money from such sinking fund;
 - (b) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund;
 - (c) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal money equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and re-borrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.
- (3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Corporation shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require. A.D. 1915.

40.—(1) The Corporation shall have power--

Power to
re-borrow.

(a) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

(b) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) By instalments or annual payments; or

(b) By means of a sinking fund; or

(c) Out of moneys derived from the sale of land; or

(d) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

41.—(1) The town clerk shall within forty-two days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in respect Return to
Local
Government
Board as to
repayment of
debt.

A.D. 1915. — of the moneys raised by the Corporation in pursuance of any statutory borrowing power and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by a statutory declaration of the town clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Application
of moneys
borrowed.

42. All moneys borrowed by the Corporation under the powers of this Act shall be applied only to the purposes for

which they are authorised to be borrowed and except in the case of money borrowed for current expenses to purposes to which capital is properly applicable. A.D. 1915.

43. When under the provisions of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Corporation are empowered or required to form a sinking fund for the payment off of moneys borrowed or payable by them they may (in addition to any other powers for the time being vested in them) invest such sinking fund and the interest on the investments of such sinking fund in statutory securities. Power to invest sinking fund in statutory securities.

44. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made shall be defrayed by the Corporation out of the district fund and general district rate. Expenses of execution of Act.

45. The Corporation shall keep a separate account of their receipts and expenditure for or in respect of their gas undertaking on capital and revenue account and the provisions of section 58 of the Local Government Act 1894 shall apply to the accounts of the Corporation and the accounts of their committees officers and assistants under this Act. Separate account of gas undertaking to be kept.

46. The Corporation shall apply all money from time to time received by them in respect of the gas undertaking except money borrowed and money derived from the sale of surplus lands or other moneys received on capital account as follows (that is to say):— Application of gas revenue.

(First) In payment of the working and establishment expenses and costs of management and maintenance of the gas undertaking :

(Secondly) In payment of the interest on moneys borrowed by the Corporation for the purposes of the gas undertaking :

(Thirdly) In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed by the Corporation for the purposes of the gas undertaking :

(Fourthly) In repaying to the district fund any deficiency in the revenues of the Corporation in respect of the gas undertaking which may at any time hereafter have been

A.D. 1915.
—

made good out of the district fund or general district rate :

(Fifthly) In providing a reserve fund for the gas undertaking if they think fit by setting aside such money as they from time to time think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to a sum equal to ten per centum of the amount of the capital expenditure of the gas undertaking which fund shall be applicable from time to time to meet expenses caused by accidents or other contingencies to answer any deficiency at any time happening in the income of the Corporation from the gas undertaking or to meet any extraordinary claim demand or expenditure at any time arising against the Corporation in respect of that undertaking or for payment of the cost of renewing any part of the works forming part thereof or in improving and extending the gas undertaking and so that if that fund is at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

And any balance remaining in any year of the income of the gas undertaking (including interest on the reserve fund when such fund amounts to the prescribed maximum) shall after the Corporation have retained or set aside such a sum as may in the opinion of the Corporation be required for carrying on the gas undertaking and paying the current expenses connected therewith as to one moiety thereof be carried to the district fund and as to the other moiety thereof be carried forward to the revenue account of the gas undertaking for the next succeeding year and shall whenever and so soon as there shall be an amount sufficient for the purpose be applied in reduction of the gas charges of the Corporation.

As to deficiency of receipts.

47. Any deficiency in the revenue or receipts of the Corporation on account of the gas undertaking shall be made good out of the district fund and the next general district rate to be made by the Corporation shall be increased so far as may

be necessary to recoup to the district fund the amount to be made good out of that fund. A.D. 1915.

PART V.

MISCELLANEOUS.

48. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or of any committee of the council under this Act or under any general or local Act for the time being in force in the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution or order of the council or any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town clerk shall be prima facie evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document. Evidence of appointments authority &c.

49.—(1) Where any notice or demand under this Act or under any local Act Provisional Order or byelaw for the time being in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication. Authentication and service of notices &c.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Provisional Order or byelaw for the time being in force within the borough may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

50. No matter or thing done or contract entered into by the Corporation nor any matter or thing done by the town clerk or by any member or officer of the Corporation or any person whomsoever acting under the direction of the Corporation shall if the matter or thing be done or the contract be entered into bona fide for the purpose of executing this Act subject Persons acting in execution of Act not to be personally liable.

A.D. 1915. — them or any of them personally to any action liability claim or demand whatsoever and any expense incurred by the Corporation or town clerk member officer or person acting as last aforesaid shall be borne and repaid out of any of the funds at the disposal of the Corporation.

Inquiries by
Local
Government
Board.

51.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Powers of
Act cumu-
lative.

52. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred upon them or on any committee appointed by the council by Act of Parliament charter law or custom and the Corporation or such committee (as the case may be) may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

Informations
by whom to
be laid.

53. Save as otherwise by this Act expressly provided all informations and complaints under or in respect of the breach of any of the provisions of this Act or of any byelaw made thereunder may be laid and made by any officer of the Corporation authorised in that behalf or by the town clerk.

Judges not
disqualified.

54. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Costs of Act.

55. The costs charges and expenses preliminary to and of and incidental to preparing applying for obtaining and passing of

this Act including the costs charges and expenses preliminary to and of and connected with the compliance with the provisions of the Borough Funds Acts 1872 and 1903 and also costs charges and expenses incurred by the Corporation in opposing the Bill for the Act of 1914 shall after taxation by the taxing officer of the House of Lords or of the House of Commons be paid by the Corporation out of the borough fund or out of the district fund or out of both of them in such proportions as the Corporation may by resolution determine. A.D. 1915.

A.D. 1915.

SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

PROVISIONS OF THE ACT OF 1914 EXCEPTED FROM REPEAL.

Section.	Marginal Note.
RE-INCORPORATION.	
5	General purposes of company.
SUPPLY OF GAS WORKS &c.	
52	Powers as to construction and maintenance of gasworks &c. (and the schedule to the Act of 1914 therein referred to).
55	Power to lay pipes &c. for purposes ancillary to business of Company.
56	Power to lay pipes in private streets.
58	For protection of Essex County Council.
59	For protection of Great Eastern Railway Company.
61	Charge for gas supplied by means of prepayment meters.
62	Quality of gas.
63	Testing place.
65	Pressure.
66	Saving as to penalties.
67	As to construction and placing of pipes &c. between mains and meters.
69	Consumers to give notice to company before removing.
70	Power to refuse to supply to persons in debt for other premises.
71	Notice to discontinue supply.
72	Period of error in defective gas meters.
73	Anti-fluctuators for gas engines.
74	Power to enter premises and remove fittings.
75	As to mode of cutting off supplies.
76	Supply of gas where consumer has separate supply.
77	Company may contract with local authority &c. for supply in bulk.
MISCELLANEOUS.	
82	Company to pay interest on money deposited as security for gas meter &c.
83	Power to take licences for use of patents.
86	Recovery of demands.
88	Recovery of penalties &c.
89	Repeal of Order of 1874 and Order of 1885.

SECOND SCHEDULE.

FORM OF MORTGAGE.

By virtue of the Chelmsford Corporation Gas Act 1915 and of other their powers in that behalf them enabling the mayor aldermen

and burgesses of the borough of Chelmsford (hereinafter called "the Corporation") in consideration of the sum of _____ pounds A.D. 1915. .
 paid to the treasurer of the Corporation by _____
 (hereinafter called "the mortgagee") do hereby grant and assign unto
 the mortgagee [his] executors administrators and assigns such propor-
 tion of the revenues of the Corporation in the said Act defined as the
 said sum so paid doth or shall bear to the whole sum which is or
 shall be charged on the said revenues to hold unto the mortgagee [his]
 executors administrators and assigns from the day of the date of these
 presents until the said sum of _____ pounds shall be
 fully paid and satisfied with interest for the same (subject as herein-
 after provided) at the rate of _____ per centum per annum from the
 day of _____ one thousand nine hundred
 and _____ until payment of the said principal sum such interest to
 be paid half-yearly [on the _____ day of _____ and the
 day of _____ in each year] And it is hereby agreed that the said
 principal sum of _____ pounds shall be repaid at the office
 of the borough treasurer [(subject as hereinafter provided) on the
 day of _____ one thousand nine hundred and _____]
 [by _____]:

Provided always and it is hereby agreed and declared that the
 before-mentioned time for repayment may be extended to such sub-
 sequent day or days and upon any such extension the before-mentioned
 rate of interest may be altered to such other rate or rates of interest
 as shall from time to time be mentioned and specified in an endorse-
 ment to be made hereon under the hands of the mayor and town
 clerk for the time being respectively and that upon any such endorse-
 ment being made whether relating to extension of time only or to
 extension of time with alteration of rate of interest the provisions
 thereof shall be incorporated herewith and shall operate and take effect
 as though they had been originally inserted herein.

In witness whereof the Corporation have caused their common seal
 to be hereunto affixed this _____ day of _____ one thousand
 nine hundred and _____ .

The Endorsement within referred to.

The within-named _____ consenting the within-mentioned
 time for repayment of the within-mentioned principal sum of _____
 is hereby extended to the _____ day
 of _____ one thousand nine hundred and _____ [and the
 interest to be paid thereon on and from the _____ day of _____ one
 thousand nine hundred and _____ is hereby declared to be at
 the rate of _____ per centum per annum].

Dated this _____ day of _____ one thousand nine hundred
 and _____

[Ch. liii.] *Chelmsford Corporation Gas Act, 1915.* [5 & 6 GEO. 5.]

A.D. 1915.

FORM OF TRANSFER OF MORTGAGE.

I [the within-named]
[of] in consideration
of the sum of pounds paid to me
by
of (hereinafter called
“the transferee”) do hereby transfer to the transferee his executors
administrators and assigns [the within-written security] [the mortgage
number of the revenues of the Chelmsford Corporation bearing
date the day of] and all my right and
interest under the same subject to the several conditions on which I
hold the same at the time of the execution hereof and I the transferee
for myself my executors administrators and assigns do hereby agree
to take the said mortgage security subject to the same conditions.

Dated this day of one thousand nine hundred
and

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FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament

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